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ADDENDUM TO STANDARD BIDDING DOCUMENT PROCUREMENT OF CIVIL WORKS

(In total 34 Pages)

NATIONAL COMPETITIVE BIDDING FOR

Name of work :

One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27.

Value of Work :- Rs. 2,04,35,740.64

Original

Office of the Executive Engineer
National Highways Division
DEOGHAR

INVITATION FOR BIDS (IFB) NATIOINAL COMPETITIVE BIDDING
Corrigendum

Tender Ref. No. NH/DEOGHAR/SBD/01/2026-27 Dated 26/05/2026, which was published in daily newspaper [PR No.- 382216 Deoghar(26-27).D] the following corrigendum has been made.

Tender Reference No. NH/DEOGHAR/SBD/01/2026-27 **Dated : 26.05.2026**

1. The Executive Engineer, National Highways Division, Deoghar invites item rate bids on-line for the work detailed in the table given below. The bidder is advised to read & examine carefully all instructions including addendum/amendments to ITB, conditions of contract, contract data, forms, terms, technical specifications, bill of quantities etc. in the Bid Document before bidding.

Sl. No.	Name of work	Approximate value of work	Bid Security (Rs. in lakh)	Cost of Document (in Rs.)	Period of completion
1	2	3	4	5	6
1	One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27.	20435740.64 (Including GST & LC)	4.09	Tender cost Rs. 10000.00 and GST-1800.00 **Total-11800.00**	6 (Six) Months including rainy season.

2. Website e-tendering portal of MORTH *https://eprocure.gov.in* may be referred for detailed terms and conditions of the Invitation for Bids (IFB) and Bidding Documents (including e-Tendering instruction to applicants), which is available online.
3. Tender will be available online on MORTH portal *https://eprocure.gov.in* and e-tendering portal of MORTH *https://eprocure.gov.in* from **17.06.2026** (**12:30 PM)** to **02.07.2026** upto **5:00 PM**. Bids must be submitted online only at e-tendering portal of MORTH *https://eprocure.gov.in* on or before **5:00 PM** on **02.07.2026** and technical bids received online will be opened on **03.07.2026** at **12:30 PM**.
4. The prospective bidders who do not posses Digital Signature Certificate (DSC) may get the same issued from approved agencies.

Executive Engineer
National Highways Division
Deoghar

Original

Office of the Executive Engineer

National Highways Division, Deoghar

INVITATION FOR BIDS(IFB) NATIONAL COMPETITIVE BIDDING

Corrigendum

Tender Ref. No. NH/DEOGHAR/SBD/01/2026-27 Dated 26/05/2026, which was published in daily newspaper [PR No.- 382216 Deoghar(26-27).D] the following corrigendum has been made.

Tender Reference No. NH/DEOGHAR/SBD/01/2026-27 **Dated : 26.05.2026**

1. The **Executive Engineer, National Highways Division, Deoghar** invites item rate bids online for the work detailed in the table given below. The bidder is advised to examine carefully all instructions including addendum/amendments to ITB, conditions of contract, contract data, forms, terms, technical specifications, bill of quantities etc. in the Bid Document.

Sl. No.	Name of work	Approximate value of work	Bid Security (Rs. in lakh)	Cost of Document (in Rs.)	Period of completion
1	2	3	4	5	6
1	One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27.	20435740.64 (Including GST & LC)	4.09	Tender cost Rs. 10000.00 and GST-1800.00 **Total-11800.00**	6 (Six) Months including rainy season.

2. Bidding Documents is available on website e-tendering portal of MORTH *https://eprocure.gov.in* from **17.06.2026** (**12:30 PM)** to **02.07.2026** upto **5:00 PM.**

3. Cost of RFP Document – Rs. 11,800/- (Including GST) for work specified above shall be paid through Online Challan in the shape of Online payment on NTRP Portal – https://bharatkosh.gov.in/MinistryInfo.aspx.

4. Bids must be accompanied by security of the amount specified for the work in the column 4 of the above table drawn in favour of "**Executive Engineer, National Highway Division, Deoghar**". Bid security will have to be in any one of the forms as specified in the bidding document and shall have to be valid for 45 days beyond the original validity of the bid in accordance with SBD (I.T.B) Clause-15.1.

5. Bids must be submitted on-line only at e-tendering portal of MORTH *https://eprocure.gov.in* on or before **5:00 PM** on **02.07.2026** and technical bids received on-line will be opened on **03.07.2026** at **12:30 PM** at the e-tendering cell of the Chief Engineer's office, National Highways Wing, RCD, Jharkhand, Ranchi through online mode. If the office happens to be closed on the date of opening of the bids as specified, the bids will be opened on the next working day at the same time and venue.

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6. The rates are inclusive of GST and cost of traffic management during construction. Contractor shall provide road signage, bollards, boards, gunny bags, sheets etc. for safety of traffic during construction period, which will be incidental to work.

7. Instructions to Bidders regarding e-tendering process:

   (a) The interested bidder can download the bid from website MORTH e-tendering portal *https://eprocure.gov.in*

   (b) The bidders have to submit their bids including scanned copy of Bid Security online only at e-tendering portal of MORTH *https://eprocure.gov.in* in electronic format with Digital Signature.

   (c) No proposal will be accepted in physical form except Bid Security. The bidders have to submit their Bid Security in hard copy (original) also on or before **12:00 PM** on **03.07.2026** to any of the offices of the (i) Executive Engineer, N.H. Division, Deoghar ; (ii) Superintending Engineer, NH Circle, Dhanbad; (iii) Chief Engineer, NH Wing, RCD, Jharkhand, Ranchi-834004. If the office happens to be closed on the last date of submission of Bid Security in hard copy as specified, the Bid Security will be received on the next working day at the offices mentioned above. In case, Bid Security is not received within specified time, the Bid shall be considered non responsive and shall not be downloaded/evaluated.

   (d) Before submission of online bids, bidders must ensure that scanned copy of all the necessary documents have been attached with bid.

   (e) The department will not be responsible for delay in online submission due to any reason whatsoever.

   (f) All the information required for bid must be filled in and submitted online.

   (g) All documents/papers uploaded/submitted by the bidder must be legible.

8. Bids shall be strictly treated as non-responsive if:

   (i) Bid is not accompanied by an acceptable bid security (with validity for a period of not less than 45 days beyond the validity of bid) and not secured as indicated in sub clauses 16.1 and 16.2 of the Bidding Document.

   (ii) The undertaking regarding validity of bid, for a period of 120 days after the dead line date for bid submission specified in clause 20 of the bidding document, is not submitted.

9. Uploaded documents of valid successful bidder will be verified with the original documents before signing the Agreement. The valid successful bidder has to provide the originals to the concerned authority on receipt of such letter, which will sent through registered post/E-mail.

10. A pre-bid meeting will be held on **24.06.2026** at **15.00** Hours at the office of Chief Engineer, NH Wing, Jharkhand, Engineers Hostel, Dhurwa, Ranchi to clarify the issues and to answer questions on any matter that may be raised at that stage as stated in clause 9.2 of "Instructions to Bidders" of the Bidding Document.

11. Other details can be seen in the Bidding Documents on the website.

12. E-TENDERING INSTRUCTION TO APPLICANTS

(1) Accessing / Purchasing of BID documents

(i) It is mandatory for all the bidders to have class-III Digital Signature Certificate (in the name of person who will sign the proposal) from any of the licensed Certifying Agency (Bidders can see the list of licensed CA's from the link http:/www.cca.gov.in) to participate in e-tendering of Ministry.

(ii) User may test their **class-III Digital Signature Certificate health (Both DSC Components, i.e. Signing & Encryption)** at *https://eprocure.gov.in* under **"Test Digital Signature Certificate"** link.

(iii) To participate in the E-Bid submission, it is mandatory for the bidders to get registered their firm/Consortium with e-tendering portal of Ministry *https://eprocure.gov.in* to have user ID & password.

(iv) After completing the profile, Vendors have to send an e-mail intimation to C1 India Helpdesk for their profile activation. All profile activations will be done only during MORTH working days.

(v) The complete bidding document can be viewed/downloaded free of cost from e-tender portal of MoRT&Hhttps://eprocure.gov.in from **17.06.2026** (**12:30 PM)** to **02.07.2026** upto **5:00 PM.** To participate for bidding, bidders have to pay **Rs. 11,800/- (Rs. Eleven thousand eight hundred only)** towards fee for BID document (non refundable), through Online Challan in the shape of Online payment on NTRP Portal – https://bharatkosh.gov.in/MinistryInfo.aspx.

(vi) Bid can be requested from e-tender portal of MoRT&H *https://eprocure.gov.in* fro**m** **17.06.2026** (**12:30 PM)** to **02.07.2026** upto **5:00 PM.**

Following may be noted

(a) The amendments / clarifications to the Bid document, if any, will be hosted on the MoRT&H website.

(b) If the firm is already registered with e-tendering portal of MoRT&H at *https://eprocure.gov.in* and validity of registration is not expired, the firm is eligible to apply without fresh registration.

(c) To participate in bidding, bidders have to pay **Application Fee (non-refundable)** as per the amount mentioned in the tender document through offline mode only. "Application Fee" is mentioned in individual tender document as published at MORTH e-Tendering Portal (*https://eprocure.gov.in*)

(2) Preparation & Submission of proposal:

(i) Bid document may be downloaded from e-tender portal of MoRT&H *https://eprocure.gov.in* from **17.06.2026** (**12:30 PM)** to **02.07.2026** upto **5:00 PM** and tender may be submitted online following the instruction appearing on the screen. The bidder shall submit scanned copy of the demand draft also while submitting online bid. A buyer manual containing the detailed guidelines for e-tendering system is also available on e-tender portal of MoRT&H.

(ii) The following documents shall be prepared and scanned in different files (in PDF or ZIP format such that file size is not more than 1 MB) and uploaded during the on-line submission of proposal. These documents shall also be submitted in "ORIGINAL" to place as per NIT Para "7 (c)" before the prescribed date & time for submission of proposals.

(i) (a) Cost of Bid document, **Rs. 11,800/- (Rs. Eleven thousand eight hundred only)** towards fee for BID document (non refundable), through Online Challan in the shape of Online payment on NTRP Portal – https://bharatkosh.gov.in/MinistryInfo.aspx.

a) Power of Attorney for signing the Application. The Power of Attorney should be executed on a non-judicial stamp paper of Rs. 100 (hundred) and duly notarised by a notary public.

b) Copy of original Document defining constitution or legal status, place of registration, principal place of business etc.

(3) Modification / Substitution / Withdrawal of proposals:

(i) The Bidder may modify, substitute or withdraw its e-bid after submission prior to the proposal Due Date. No proposal shall be modified, substituted or withdrawn by the Bidder on or after the proposal Due Date & Time.

(ii) Any alteration / modification in proposal or additional information supplied subsequent to the proposal Due Date, unless the same has been expressly sought for by the Ministry, shall be disregarded.

(iii) For modification of e-bid, bidder has to detach its old proposal from e-tendering portal and upload / resubmit digitally signed modified proposal.

(iv) For withdrawal of proposal, bidder has to click on withdrawal icon at e-tendering portal and can withdraw its e-bid.

(v) Before withdrawal of a proposal, it may specifically be noted that after withdrawal of a proposal for any reason, bidder cannot re-submit e-bid again.

(4) **Opening & Evaluation of proposals**.

(i) Opening & evaluation of proposals will be done through online process.

(ii) Chairman, e-Procurement Cell, Office of the Chief Engineer, National Highway Wing, Jharkhand, Ranchi shall open on-line received proposals at **12:30** hours IST on the proposal Due Date **02.07.2026** Subsequently documents will be examined and evaluated in accordance with the provisions set out.

(iii) Prior to evaluation of proposals, the competent authority shall determine whether each proposal is responsive to the requirements as per Bid Document.

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(iv) The proposals shall be opened of those bidders only who submit originals as mentioned in para 2(ii) above of E-Tendering procedure.

The proposals submitted on-line shall not be opened and shall be declared non-responsive, if originals are not submitted as mentioned in para 2(ii) of E-Tendering procedure..

(5) For any assistance about MORT e-Tendering, please contact E-Tendering Cell. This will help us serving you better and is open between 10:00 Hrs to 17:00 Hrs IST [Monday to Friday (Exclusions: HOLIDAYS)].

Executive Engineer
National Highways Division,
Deoghar

GOVERNMENT OF JHARKHAND

One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27.

AGREEMENT NO.....

NATIONAL COMPETITIVE BIDDING

(CIVIL WORKS)

NAME OF WORK : One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27.

PERIOD OF SALE OF BIDDING DOCUMENT	:	DATE: **17.06.2026** (**12:30 PM)** to **02.07.2026** upto **5:00 PM.** (On-line)
TIME AND DATE OF PRE BID CONFERENCE	:	**24.06.2026** at **15:00 Hours** at the office of the Chief Engineer, National Highway Wing, Jharkhand, **Ranchi**
LAST DATE AND TIME FOR RECEIPT OF BIDS	:	DATE **02.07.2026** TIME: **5:00 PM** (On-line)
*TIME AND DATE OF OPENING TECHNICAL BID	:	DATE **03.07.2026** TIME: **12.30 PM** (On-line)
TIME AND DATE OF OPENING FINANICAL BID	:	TO BE ANNOUNCED LATER (On-line)
PLACE OF OPENING BID	:	Online opening will be held at the Office of the Chief Engineer (NH), Jharkhand, RCD, Engineers Hostel, Dhurwa, Ranchi-834004
OFFICER INVITING BID	:	The Executive Engineer, National Highways Division, Deoghar .

* Should be the same as for the deadline for receipt of bids or promptly thereafter.

APPENDIX TO ITB

Sl No	Clause reference With respect to Section-1	content
1	Cl.1.1	Name of the Employer is – Chief Engineer National Highway Wing, Jharkhand, Ranchi
2		The last five years- 2021 - 2022 2022 - 2023 2023 - 2024 2024 - 2025 2025 - 2026
3	Cl.4.5A(a)	The average annual turnover amount is **Rs. 81.74** Lakhs (in words) Rs. Eighty One Lakh & Seventy Four Thousand only work
4	Cl.4.5A (b)	Cost of completed/substantially completed is **Rs. 81.74** Lakhs (in words) Rs. Eighty One Lakh & Seventy Four Thousand only work
5	Cl.4.5A (c)	Not applicable as per enclosed addendum to ITB
6	Cl. 4.5A (d)	Not applicable as per enclosed addendum to ITB
7	Cl.4.5A (e)	Not applicable as per enclosed addendum to ITB
8	Cl.4.5B(c)	Liquid assets and / or availability of credit facilities is **Rs. 20.44** Lakhs (in words) Rs. Twenty lakh & Fourty Four thousand only
9	Cl.4.7	Available bid capacity is Rs **204.36** Lakhs (in words) Rs. Two crores Four lakhs & Thirty Six Thousand only Price level of the financial year (To work out bid capacity)- Base year **2025-26**
10	Cl.9.2.1	The pre-bid meeting will take place Office of Chief Engineer, National Highway Wing, Jharkhand, Engineers Hostel, Dhurwa, **Ranchi**
11		The technical bid will be opened (through online) at office of Chief Engineer, National Highway Wing, Jharkhand, Engineers Hostel, Dhurwa, Ranchi On **03.07.2026** at **12:30** Hours (online)

12	Cl 4.5(a)	Address of the employer- Chief Engineer National Highway Wing, Jharkhand Engineers Hostel, Dhurwa, Ranchi-834004 (Jharkhand)
13	Cl 19.2(b)	Identification- One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27. Bid Reference no- NH/Deoghar/SBD/01/2026-27 Do not open before – **03.07.2026** at **12:30 PM**
14	Cl 20.1(a)	The bid should be submitted latest by- **02.07.2026** at **5:00 PM** (Online)
15	Cl 23.1	The bid will be opened at Office of Chief Engineer National Highway Wing, Jharkhand, Ranchi (by Chairman e-Procurement Cell) **03.07.2026** at **12:30 PM**
16	Cl 34.1	through Online Challan in the shape of Online payment on NTRP Portal – https://bharatkosh.gov.in/MinistryInfo.aspx.
17	Cl 36.1 **DELETED**	The name of dispute review expert- To be appointed by the Council of Indian Roads Congress
18.		Following Escalation factors (for the cost works executed and financial figure to a common base value for works completed in India)-

Yearbefore	Multiplyingfactor
One	1.10
Two	1.21
Three	1.33
Four	1.46
Five	1.61

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Addendum /Amendments to I.T.B.

Clause Reference with respect to section 1	
Clause No. 4.4 Page 8	Stand Deleted.
Clause No. 4.5 to 4.8 to 10)	Stand amended as per Qualification criteria stated in (Page 8 guidelines issued vide Ministry of Road Transport & Highways, Govt. of India, New Delhi No. RW/NH-24035/4/2008-P&M/PIC dated the 27th Nov, 2009. - The text of aforesaid guidelines vide Ministry's letter dated 27.11.09 is placed below for the bidders. The bidder is advised to examine carefully the guidelines and amendment and go through it before bidding.

Annex I

2.6 QUALIFICATION CRITERIA

2.6.1. Qualification will be based on Applicant's meeting all the following minimum pass/fail criteria regarding the Applicant's general and particular experience, personnel and equipment capabilities, and financial position, as demonstrated by the Applicant's responses in the forms attached to the Letter of Application (specified requirements for joint ventures are given under para 2.7 below). Subcontractors' experience and resources shall not be taken into account in determining the Applicant's compliance with the qualifying criteria.

To qualify for more than one contract, the applicant must demonstrate having experience and resources sufficient to meet the aggregate of the qualification criteria for each contract given in paragraphs 2.6.4, 2.6.5, 2.6.6 and 2.6.9 below.

2.6.2. Base Year and Escalation

The base year shall be taken as **2025-26** (particular year to be mentioned)

Following enhancement factors will be used for the costs of works executed and the financial figures to a common base value for works completed in India.

Year before	Multiplying factor
One	1.10
Two	1.21
Three	1.33
Four	1.46
Five	1.61

Applicant should indicate actual figures of costs and amount for the works executed by them without accounting for the above mentioned factors.

In case the financial figures and value of completed works are in foreign currency, the above enhanced multiplying factors will not be applied. Instead, current market exchange rate (State Bank of India Be Selling rate as on the last date of submission of the bid) will be applied for the purpose of conversion of amount in foreign currency into Indian rupees.

2.6.3. General Experience

The Applicant shall meet the following minimum criteria:

(a) Average annual turnover (defined as billing for works in progress and completed in all classes of civil engineering construction works only) over the last five years of 40 per cent of the value of contract/contracts applied for.

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(b) Experience in successfully completing or substantially completing as least one contract of highway (road and/or bridge works)/airport runway of at least 40 per cent of the value of proposed contract within the last five years.

The works may have been executed by the Applicant as prime contractor or as a member of Joint Venture or sub contractor. As sub contractor, he should have acquired the experience of execution of all major items of works under the proposed contract. In case a project has been executed by a joint venture, weightage towards experience of the project would be given to each joint venture in proportion to their participation in the joint ventures.

Substantially completed works means those works which are at least 90% completed as on the date of submission (i.e. gross value of work done up to the last date of submission is 90% or more of the original contract price) and continuing satisfactorily. For these, a Certificate from the employer shall be submitted along with the application incorporating clearly the name of the work, Contract value, billing amount, date of commencement of works, satisfactory performance of the Contractor and any other relevant information.

2.6.4. Personnel Capabilities

The Applicant must have suitably qualified personnel to fill the following positions. The applicant will supply information on a prime candidate and an alternate for each position, both of whom should meet the experience requirements specified below:

S. No.	Position	Total experience (Years)	In Similar works (Years)	As manager of similar works (Years)
(1)	Project Manager			
(2)	Other positions			
(Suggested lists is given in Annexure-II)				

2.6.5. Equipment Capabilities

The Applicant should own or should have assured ownership to the following key items of equipment, in full working order, and must demonstrate that, based on known commitments; they will be available for use in the proposed contract.

S. No.	Equipment type and characteristics	Minimum number required
(1)		
(2)		
(Suggested list given in Annexure-I)		

2.6.6. Financial Position

The Applicant should demonstrate that he has access to, or had available, liquid assets (aggregate of working capital, cash in hand and uncommitted bank guarantees) and/or credit facilities of not less than 10 per cent of the value of the contract/contracts applied for (construction cash-flow may be taken as 10 per cent of the estimated value of contract/contracts.

2.6.7 The audited balance sheets for the last five years should be submitted, which must demonstrats the soundness of the Applicant's financial position, showing long-term profitability including an estimated financial projection for the next two years. If necessary, the Employer will make inquiries with the applicant's bankers.

2.6.8 Litigation History

The Applicant should provide accurate information on any litigation or arbitration resulting from contracts completed or under execution by him over the last five years. A consistent history of awards against the Applicant or any partner of a joint venture amy result in failure of the applicant.

2.6.9 Bid Capacity

Applicants who meet the minimum qualification criteria will be qualified only if their available bid capacity at the expected time of bidding is more than the total estimated cost of the works. The available bid capacity will be calculated as under:

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Assessed Available Bid Capacity = (A*N*2-B), where

A = Maximum value of works executed in anyone year during the last five years (updated to the current price level) rate of inflation may be taken as l0 per cent per year which will take into account the completed as well as works is progress;

B = Value at current price level of the existing commitments and ongoing work to be completed during the next 6/12 years (period of completion of works for which bids are invited); and

N = Number of years prescribed for completion of the works for which the bids are invited.

Note: In case of a Joint Venture, the available bid capacity will be applied for each partner to the extant of his proposed participation in the execution of the works.

2.6.10 Disqualification

Even though the Applicants meet the above criteria, they are subject to be disqualified if they have:

- made misleading or false representation in the form, statements submitted; and/or
- Records of poor performance such as abandoning the work, rescinding of contract for which the reasons are attributable to the non-performance of the contractor; consistent history of litigation awarded against the Applicant or financial failure due to bankrupcy. The rescinding of contract of a joint venture on account of reasons other than non- performance, such as Most Experienced partner of joint venture pulling out, court directions leading to breaking up of a joint venture before the start of work, which are not attributable to the poor performance of the contractor will, however, not affect the qualification of the individual partners.

2.7 JOINT VENTURE

2.7.1. Joint ventures must comply with the following requirements;

(a) Following are the minimum qualification requirements;

(i) The lead partner shall meet not less than 50 per cent of all the qualifying criteria given in para 2.6.3 & 2.6.6 above. The joint venture must collectively satisfy the criteria of para 2.6.3 & 2.6.6 above. The experience of the other joint venture partners shall be considered if it is not less than 30 per cent of the qualifying criteria given in para 2.6.3 & 2.6.6 above. However,in case one of the joint venture partners is proposed to be included primarily to provide financial strength to the joint venture, such joint venture partner shall have to commit to provide liquidity support to the project to the extent of 10 per cent of the value of the contract,

(ii) The joint venture must satisfy collectively the criteria of para 2.6.4 and 2.6.5 above for which purpose the relevant figures for each of the partners shall be adeed together to arrive at the joint venture's total capacity. Individual members must each satisfy the requirements of para 2.6.7& 2.6.8 above,

(b) The formation of a joint venture after prequalification, any change in a pre-qualified joint venture will be subject to the written approval of the Employer prior to the deadline for submission of bids. Such approval shall be denied if (i) partners withdraw from a joint venture and the remaining partners do not meet the qualifying requirements; (ii) the new partners to a joint venture are not qualified individually or as another joint venture; or (iii) in the opinion of the Employer, a substantial reduction in competition may result.

(c) Bid shall be signed so as to legally bind all partners, jointly and severally, and shall be submitted with a copy of the joint venture agreement providing the 'joint and several' liability with respect to the contract.

2.7.2. Qualification of a joint venture does not necessarily qualify any of its partners individually or as a partner in any other joint venture. In case of dissolution of a joint ventures, each one of the constituent firms may qualify if they meet all the qualification requirements subject to the written approval of the Employer.

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Minimum Key personnel for the project

Annexure-II

Sl. No.	Personnel	Qualification	Lot Size			
			Rs. 50 Million	Rs. 51-200 Million	Rs. 201-500 Million	Rs. 501-1000 Million & above
1.	Project Manager	B.E. Civil + 10 Years Exp.	1	1 No.	1 No.	1 No.
2.	Site Engineer	B.E. Civil + 3 Years Exp.	1	2 Nos.	4 Nos.	6 Nos.
3.	Plant Engineer	B.E. Mech +3 Years Exp. Or Dip Mech +7 Years Exp.	1	1 No.	1 No.	2 Nos.
4.	Quantity Surveyor	B.E. Civil + 7 Years Exp. Or Dip Civil +7 Years Exp.	1	1 No.	1 No.	2 Nos.
5.	Soil & Material Engineer	B.E. Civil + 7 Years Exp. Or Dip Civil +7 Years Exp.	1	1 No.	1 No.	1 No.
	Total		5 Nos.	6 Nos.	8 Nos.	12 Nos.

Annexure-I

List of Plant & Equipment to be deployed on Contract work

Sl. No.	Type of Equipment	Maximum Age on bid submission date	Upto Rs. 50 Million	Rs. 51-200 Million	Rs. 201-500 Million	Rs. 501-1000 Million & above
1.	Tipper Trucks	5-7	6	10	15	20
2.	Motor Grader	5	2	-	3	4
3.	Dozer	5	1	-	1	2
4.	Front end Loader	5	2	2	2	4
5.	Smooth Wheeled Roller	5	2	2	3	4
6.	Vibratory Roller	5	2	2	2	3
7. *	Hot Mix Plant with Electronic Controls (Minimum 100-120 TPH Capacity)	5	1	1	1	2
8.	Paver Finisher with Electronic Sensor	5	1	1	1	2
9.	Water Tanker	5	3	3	4	5
10.	Bitumen Sprayer	5-7	1	1	1	2
11.	Tandem Roller	5	1	1	1	1
12.	Concrete Mixers with Integral Weigh Batching facility	5	2	-	1	2
13.	Concrete Batching and Mixing Plant (Minimum Capacity – 15 m^3/hour)	5	-	-	1	1
14.	Concrete paver capable of paving 7.5m width in one single pass including all accessories. Such as automatic dowel bar insertor, integral vibratory system and electronic sensors ancillary equipment for applying curing compound, joint cutting	5	-	-	-	1
15. *	Concrete Batching and Mixing plant wth automatic control (minimum 100 cum/hour)	5	-	-	-	1
16	Heavy Duty Plate Compactor	5		1		
		Total	24	24	36	54

* Sl. No.-7 – Should be read as "Hot Mix Plant with Electronic controls (Minimum 80 to 100TPH capacity)."* Sl. No.-15 – should be read as "Concrete Batching & Mixing Plant with automatic control (minimum 30cu. meter/hour)".

Original	
New Clause No. Cl.4.9	A new sub clause Cl.4.9 is added and shall be read as under; <u>Litigation History</u> The Applicant should provide accurate information on any litigation or arbitration resulting from contracts completed or under execution by him over the last five years. A consistent history of awards against the Applicant or any partner of a joint venture may result in failure of the applicant.
Clause No.8.2 Page 11	Deleted.
Clause No. 9.1 Page-12	Stand amended to this extent that "The Employer's response shall be uploaded on e-Tendering website under tender reference"
Clause No. 9.2.4 Page-12	Stand amended to this extent that "Minutes of the meeting including the text of questions raised and modification (if any) of the bidding documents listed in Sub Clause-8.1, which may become necessary as a result of the pre-bid meeting shall be made by the Employer exclusively through the issue of an Addendum pursuant to Clause 10 (to be uploaded on e-tendering website under tender reference) and not through the Minutes of the pre-bid meeting".
Clause No. 10.2 Page-12	Stand amended to this extent that "Any addendum thus issued shall be part of the bidding documents and shall be uploaded on e-tendering website under tender reference and it will be deemed as bidders acknowledge receipt of each addendum to the Employer. The Employer will assume no responsibility for not caring the same by the bidders.
Clause No.12.2 Page 13	Deleted.
Clause No.13.2 Page 14	This clause is replaced by the following; The bidder shall fill in rates for all items of the Works

	described in the Bill of Quantities as available online. Items for which no rate is entered by the bidder will not be paid for by the Employer when executed and shall be deemed covered by the other rates and prices in the Bill of Quantities.
Clause No.13.4 Page-14	(i) First option is applicable only for the contracts upto 12 months period. (ii) Second option is applicable only for the contracts more than 12 months period.
Clause No.15.3 Page-15	This clause is applicable only in which contract price is fixed (not subject to price adjustment).
Clause No. 16.1 Page 15	The second sentence is replaced by, –This bid security shall be in favour Chief Engineer,National HighwayWing, Jharkhand,Ranchi and may be in any one of the following forms''
Clause No. 16.2 Page 15	Replace the word of first line, 'surety' by 'security'
Clause No. 16.4 Page 15	Add at the end, –"or 15.2 as the case may be".
Clause No.18.1 Page 16	This clause is replaced by the following; "The Bidder shall submit online one set of bid documents comprising of the documents as described in Clause 12 of these Instructions to Bidders."
Clause No.18.2 Page 16	This clause is replaced by the following: The Bid shall be digitally signed by a person or persons duly authorized to sign on behalf of the Bidder, pursuant to Sub-Clauses 4.3. All pages of the bid where entries or amendments have been made shall be deemed as digitally initialed by the person or persons signing the bid.
Clause No.19.1 Page 16	This sub-clause is replaced by the following: The Bidder shall submit two separate digitally signed files marked as "Technical Bid (Cover-1)" and "Financial Bid(Cover-2)". The contents of Technical and Financial Bids will be as specified in clause 12.1. All documents are to be signed digitally by the bidders.

Original

Clause No.19.2 Page 17	Deleted
Clause No.19.3 Page 17	Deleted
Clause No.19.4 Page 17	Deleted
Clause No.20.1 Page 17	This sub-clause is replaced by the following: Complete bids (including Technical and Financial Bids) must be uploaded online through e-portal before the date and time (as per server clock) as specified in the Appendix to ITB. The Employer will assume no responsibility for delay caused due to non-availability of internet connectionor network trafficjametc..
Clause No.21 Page 17	Deleted
Clause No. 22.1 Page 17	Bidders may modify or withdraw only through online mode.
Clause No.22.2 Page 17	This sub-clause is replaced by the following: Each Bidder's modification or withdrawal notice shall be prepared and uploaded online in accordance with Clause 18 & 19.
Clause No.22.3 Page 17	Deleted
Clause No. 23.1 Page 18	Replace the word 'Employer' by “Chairman, e-procurement cell, NH Wing, Jharkhand, Ranchi''
Clause No. 23.2 Page-18	Deleted
Clause No. 23.3 Page-18	This sub-clause is replaced by the followings :- "The Technical Bid shall be opened online. If the bid security furnished does not confirm to the amount and

Original	validity period as specified in the Invitation for Bid (ref. Column 4 and paragraph-3), and has not been furnished in the form specified in Clause 16, the remaining technical bid and the financial bid will be deemed as 'Rejected'.
Clause No.23.5 Page 18	Deleted
Clause No. 23.6 Pag-19	This sub clause is replaced by the followings :- "The financial bids of those bidders found responsive in accordance with Clause 23.4(iv) will be opened and the remaining bids will be treated as 'unopened' & 'invalid'.
Clause No. 23.8 Page-19	This sub clause is replaced by the followings :- "E-portal system auto generated Bid opening report shall be treated as minutes of the Bid opening".
Clause No.27 Page 20	Deleted
Clause No. 29.2 Page 20	Deleted
Clause No. 33.3 Page 22	In second sentence (line-2) and third sentence (line-4) 'the Employer' word is replaced by 'the Engineer'. The Engineer i.e. the Executive Engineer of NH Division concerned will sign the contract Agreement on behalf of the Employer.

Original

Annexure-I

Equipment Capabilities

The Applicant should own or should have assured ownership to the following key items of equipment, in full working order, and must demonstrate that, based on known commitments; they will be available for use in the proposed contract.

S. No.	Equipment type and characteristics	Minimum number required
(1)		
(2)		

List of Plant & Equipment to be deployed on Contract work

Sl. No.	Type of Equipment	Maximum Age on bid submission date	Upto Rs. 50 Million	Rs. 51-200 Million	Rs. 201-500 Million	Rs. 501-1000 Million & above
1.	Tipper Trucks	5-7	6	10	15	20
2.	Motor Grader	5	2	-	3	4
3.	Dozer	5	1	-	1	2
4.	Front end Loader	5	2	2	2	4
5.	Smooth Wheeled Roller	5	2	2	3	4
6.	Vibratory Roller	5	2	2	2	3
7. *	Hot Mix Plant with Electronic Controls (Minimum 8200 TPH Capacity)	5	1	1	1	2
8.	Paver Finisher with Electronic Sensor	5	1	1	1	2
9.	Water Tanker	5	3	3	4	5
10.	Bitumen Sprayer	5-7	1	1	1	2
11.	Tandem Roller	5	1	1	1	1
12.	Concrete Mixers with Integral Weigh Batching facility	5	2	-	1	2
13.	Concrete Batching and Mixing Plant (Minimum Capacity – 15 m^3/hour)	5	-	-	1	1
14.	Concrete paver capable of paving 7.5m width in one single pass including all accessories. Such as automatic dowel bar insertor, integral vibratory system and electronic sensors ancillary equipment for applying curing compound, joint cutting etc.	5	-	-	-	1
15. *	Concrete Batching and Mixing plant wth automatic control (minimum 100 cum/hour)	5	-	-	-	1
16	Heavy duty plate compactor	5		1		
		Total	24	24	36	54

* Sl. No.-7 – Should be read as "Hot Mix Plant with Electronic controls (Minimum 80 to 100TPH capacity)."

* Sl. No.-15 – should be read as "Concrete Batching & Mixing Plant with automatic control (minimum 30cu. meter/hour)".

Original

Annexure-II

Personnel Capabilities

The Applicant must have suitably qualified personnel to fill the following positions. The applicant will supply information on a prime candidate and an alternate for each position, both of whom should meet the experience requirements specified below:

S. No.	Position	Total experience (Years)	In Similar works (Years)	As manager of similar works (Years)
(1)	Project Manager			
(2)	Other positions			

Minimum Key personnel for the project

Sl. No.	Personnel	Qualification	Lot Size			
			Rs. 50 Million	Rs. 51-200 Million	Rs. 201-500 Million	Rs. 501-1000 Million & Above
1.	Project Manager	B.E. Civil + 10 Years Exp.	1	1 No.	1 No.	1 No.
2.	Site Engineer	B.E. Civil + 3 Years Exp.	1	2 Nos.	4 Nos.	6 Nos.
3.	Plant Engineer	B.E. Mech + 3 Years Exp. Or Dip Mech + 7 Years Exp.	1	1 No.	1 No.	2 Nos.
4.	Quantity Surveyor	B.E. Civil + 7 Years Exp. Or Dip Civil + 7 Years Exp.	1	1 No.	1 No.	2 Nos.
5.	Soil & Material Engineer	B.E. Civil + 7 Years Exp. Or Dip Civil + 7 Years Exp.	1	1 No.	1 No.	1 No.
	Total		5 Nos.	6 Nos.	8 Nos.	12 Nos.

ADDENDUM TO QUALIFICATION INFORMATION

Clause Reference with respect to Section 2	
Clause 1.3.2 Page- 30	Deleted
Clause 3.1 Page-33	(i) Affidavits:-(As per sampleformatat page-35) shall be submitted on Rs 100.00 non Judicial stamp paper duly notarized.
Clause 3.1 Page-33	(ii) undertakings:-(As per sample format at Page-36) shall be submitted on Rs 100.00 non Judicial stamp paper duly notarized
Bank Certificate Page 34	Sample format for evidence of access to or availability of credit facilities:- shall be furnished by bank on their original letter head . The certificate should not be old by more than three months.

Addendum /Amendments to conditions of contract

Clause Reference with respect to Section 3	
Clause 1.1 Page-39	The 11th and 12th line are replaced by the following; The contract is the contract between the –"Employer" and the "contractor" to execute, complete and maintain the works till the completion of Defect Liability Period. It consists of the documents listed in clause 2.3 below.
Clause No.47 Page 51	Deemed to be deleted in case of contract price is fixed (not subject to price adjustment)
Clause No. 50 Page-52	Deleted.
Clause No. 51.1 Page-52 to 53	This sub clause is replaced by the following; The Employer shall make advance payment (not to be paid in less than two installments except in special circumstances for which the reasons to be recorded in writing) to the Contractor of the amounts stated in the Contract Data by the date stated in the Contract Data, against provision by the Contractor of an Unconditional Bank Guarantee in a form and by a bank acceptable to the Employer in amounts and currencies equal to be at least 110% of the advance payment. The guarantee shall remain effective until the advance payment has been repaid, but the amount of the guarantee shall be progressively reduced by the amounts repaid by the Contractor. The mobilization advance would be deemed as interest bearing advance at an interest rate of 10% to be compounded quarterly.

SECTION 4

CONTRACT DATA

1. The employer is- [C1.1.1]

Chief Engineer, National Highways Wing, Jharkhand, Ranchi

Name of authorized representative-

Executive Engineer National Highways Division, Deoghar

2. The Engineer is-

Executive Engineer, National Highways Division, Deoghar

Name of Authorized Representative:

Assistant Engineer NH Sub-Division, Godda

3. The dispute review expert appointed jointly by the employer and contractor is : **DELETED** [C1.1.1]

To be appointed by the council of Indian Road Congress

4 The defects liability period is **Three** year from the date of completion [C1.1.1&35]

5 The start date shall be 14 days from the date of issue of the Notice to proceed with the work [C1.1.1]

6. The intended completion date for the whole of the works is 6 **(Six)** Months (Including rainy and winter seasons) after start of work with the following milestones:- [C1.1.1,17&28]

Milestone dates :- [C1.2.2,49.1]

	Physical works to be completed	Period from the start date
Milestone-1 i.e.	30%	2 Months
Milestone-2 i.e.	60%	4 Months
Milestone-3 i.e.	100%	6 Months

7. The site is located at :- [C1.1.1]

From Km 93.00 to Km 94.00 of NH-133 at Hansdiha (to be inserted)

8. The name and identification number of the contract is: [C1.1.1]

One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27.

9. The works consist of –

One Time Improvement (OTI) of NH-133 from Km 93.00 to Km 94.00 at Hansdiha in the state of Jharkhand for the year 2026-27.

[C1.1.1]

The works shall, inter alia, include the following, as specified or as directed.:

(A) Road Works

-Bituminous work (DBM/BM/BC/SDBC) (Combined Quantities).

(B) Other Items-

Any other items as required to fulfill all contractual obligations as per the Bid Documents

. [C1.1.1]

10. The following documents also form part of the Contract: [C1.2.3 (9)]

11. The law which applies to the Contract is the– Law of Union of India [C1.3.1]

12. The language of the Contract documents is - English [C1.3.1]

13. Limit of subcontracting- (Deleted) 50% of the Initial Contract Price [C1.7.1]

14. The Schedule of Other Contractors :- [C1.8]

15. The Schedule of Key Personnel- As per Annexure-II to Section 1 [C1.9]

16. The minimum insurance cover for physical property, injury and death is Rs. 1521.00 lakhs per occurrence with the number of occurrences limited to four. After each occurrence, contractor will pay additional premium necessary to make insurance valid for four occurrences always [Cl. 13]

17. Site investigation report- … 15 Days… … … … … … … … [C1.14]

18. The Site Possession Dates shall be- as date of start of work. [Cl. 21]

19. Fees and types of reimbursable expenses to be paid to the Dispute Review Expert- DELETED (To be inserted later) [CL 25]

20. Appointing Authority for the Dispute Review Expert – Council, Indian Roads Congress, New Delhi DELETED [Cl. 26]

21. The period for submission of the programme for approval of Engineer- shall be 21 days from the issue of Letter of Acceptance. [Cl. 27.1]

22. The period between programme updates shall be- **30 Days** [Cl. 27.3]

23. The amount to be withheld for late submission of an updated programme shall be-- Rs **1.5** (One point Five) Lakhs [Cl. 27.3]

[Cl. 27.3]

24. The following events shall also be Compensation Events; [Cl. 44]

Substantially adverse ground conditions encountered during the course of execution of work not provided for in the bidding document

(i) Removal of underground utilities detected subsequently
(ii) Significant change in classification of soil requiring additional mobilization by the contractor, e.g. ordinary soil to rock excavation,
(iii) Removal of unsuitable material like marsh, debris dumps, etc not caused by the contractor
(iv) Artesian conditions
(v) Seepage, erosion, landslide
(vi) River training requiring protection of permanent work
(vii) Presence of historical, archeological or religious structures. monuments interfering with the works
viii) Restriction of access to ground imposed by civil, judicial, or military authority

25. The currency of the Contract is Indian Rupees [Cl. 46]

Page 25

26. (i) for contract upto 12 months -- This clause would not be applicable. [Cl 47]

Clause Reference with respect to section3

Adjustment for labour component

(i) Price adjustment for increase or decrease in the cost due to labour shall be paid in accordance with the following formula:

$V_L = 0.85 \times P_l/100 \times R \times (L_i - L_o)/L_o$

V_L = increase or decrease in the cost of work during the month under consideration due to changes in rates for local labour.

L_o = the consumer price index for industrial workers for the State on 28 days preceding the date of opening of Bids as published by Labour Bureau, Ministry of Labour, Government of India.

L = The consumer price index for industrial workers for the State for the under consideration as published by Labour Bureau, Ministry of Labour, Government of India.

P_I = Percentage of labour component of the work.

Adjustment for cement component

(ii) Price adjustment for increase or decrease in the cost of cement procured by the contractor shall be paid in accordance with the following formula:

$V_c = 0.85 \times P_c/100 \times R \times (C_i - C_o)/C_o$

V_c = increase or decrease in the cost of work during the month under consideration due to changes in rates for cement.

C_o = The all India wholesale price index for cement on 28 days preceding the date of opening of Bids as published by the Ministry of Industrial Development, Government of India, New Delhi.

C_i = The all India average wholesale price index for cement for the month under consideration as published by Ministry of Industrial Development, Government of India, New Delhi

P_c = Percentage of cement component of the work

Adjustment for steel component

(iii) Price adjustment for increase or decrease in the cost of steel procured by the Contractor shall be paid in accordance with the following formula:

$V_s = 0.85 \times P_s/100 \times R \times (S_i - S_o)/S_o$

V_s = Increase or decrease in the cost of work during the month under consideration due to changes in the rates for steel

S_o = The all India wholesale price index for steel (Bars and Rods) on 28 days preceding the date of opening of Bids as published by the Ministry of Industrial Development, Government of India, New Delhi

S_i= The all India average wholesale price index for steel (Bars and Rods) for the month under consideration as published by Ministry of Industrial Development, New Delhi

P_s = Percentage of steel component of the work

Note : For the application of this clause, index of Bars and Rods has been chosen to represent steel group.

Adjustment of bitumen component

(iv) Price adjustment for increase or decrease in the cost of bitumen shall be paid in accordance with the following formula:

$V_b = 0.85 \times P_b/100 \times R \times (B_i - B_o)/B_o$

V_b= Increase or decrease in the cost of work during the month under consideration due to changes in rates for bitumen.

B_o = The official retail price of bitumen at the IOC depot at nearest center on the day 28 days prior to date of opening of Bids.

B_o = The official retail price of bitumen of IOC depot at nearest center for the 15^{Ih} day of the month under consideration.

P_b = Percentage of bitumen component of the work

Adjustment of POL (fuel and lubricant) component

(v) Price adjustment for increase or decrease in cost of POL (fuel and lubricant) shall be paid in accordance with the following formula:

$V_f = 0.85 \times P_f/100 \times R \times (F_i - F_o)/F_o$

V_f = Increase or decrease in the cost of work during the month under consideration due to changes in rates for fuel and lubricants.

F_o = The official retail price of High Speed Diesel (HSD) at the existing consumer pumps of IOC at nearest center on the day 28 days prior to the date of opening of Bids.

F_i = The official retail price of HSD at the existing consumer pumps of IOC at nearest center for the 15th day of month of the under consideration.

P_f = Percentage of fuel and lubricants component of the work.

Note: For the application of this clause, the price of High Speed Diesel oil has been chosen to represent fuel and lubricants group.

Clause Reference with respect to section3

Adjustment for Plant and Machinery Spares Component

(vi) Price adjustment for increase or decrease in the cost of plant and machinery spares procured by the Contractor shall be paid in accordance with the following formula:

$V_p = 0.85 \times P_p/100 \times R \times (P_i - P_o)/P_o$

V_p = Increase or decrease in the cost of work during the month under consideration due to changes in rates for plant and machinery spares

P_o = The all India wholesale price index for heavy machinery and parts on 28 days preceding the date of opening of Bids as published by the Ministry of Industrial Development, Government of India, New Delhi.

P_i = The all India average wholesale price index for heavy machinery and parts for the month under consideration as published by Ministry of Industrial Development, Government of India, New Delhi. [Cl. 49]

P_p = Percentage of plant and machinery spares component of the work.

Note : For the application of this clause, index of Heavy Machinery and Parts has been chosen to represent the Plant and Machinery Spares group.

Adjustment of Other materials Component

(vii) Price adjustment for increase or decrease in cost of local materials other than cement, steel, bitumen and POL procured by the contractor shall be paid in accordance with the following formula: [CI. 49]

$V_m = 0.85 \times P_m/100 \times R \times (M_i - M_o)/M_o$ [Cl. 50]

V_m = Increase or decrease in the cost of work during the month under consideration due to changes in rates for local materials other than cement, steel, bitumen and POL.

M_o = The all India wholesale price index (all commodities) on 28 days preceding the date of opening of Bids, as published by the Ministry of Industrial Development, Government of India, New Delhi. [Cl. 50]

M_i = The all India wholesale price index (all commodities) for the month under consideration as published by Ministry of Industrial Development, Government of India, New Delhi. [Cl.51 & 52]

P_m = Percentage of local material component (other than cement, steel, bitumen and POL) of the work.

Original

Clause Reference with respect to section3

DELETED

The following percentages will govern the price adjustment for the entire contract:

The following percentages will govern the price adjustment for the entire contract:

1.	Labour – P_I	25%
2.	Cement – P_c	5 %
3.	Steel- P_S	5 %
4.	Bitumen – P_b	10 %
5.	POL – P_f	5 %
6.	Plant & Machinery Spares – P_p	5 %
7.	Other materials – P_m	45 %

	Total	100%
		---

27. The proportion of payments retained (retention money) shall be- 6% from each bill subject to a maximum of 5% of final contract price [Cl. 48]

28. Amount of liquidated damages for Delay in completion of works – [Cl. 49]

1- For whole of work (1/2000)th of the initial contract price, rounded off to the nearest Thousand, per day.

2- For sectional completion (wherever specified in Item 6 of contract data) (1/200)th of initial contract price for 5 km section, rounded off to the nearest thousand per day.

Original

29 Maximum limit of liquidated damages for delay in completion of work –10% of the the initial Contract price rounded off to nearest thousand [Cl.49]

30 DELETED [Cl 50]

31 DELETED [Cl 50]

32 The amounts of the advance payment are [Cl 51 &52]

(i) Mobilization	10% of the contract Price	The Employer shall make advance payment (not to be paid in less than two installments except in special circumstances for which the reasons to be recorded in writing) to the Contractor of the amounts stated in the Contract Data by the date stated in the Contract Data, against provision by the Contractor of an Unconditional Bank Guarantee in a form and by a bank acceptable to the Employer in amounts and currencies equal to be at least 110% of the advance payment. The guarantee shall remain effective until the advance payment has been repaid, but the amount of the guarantee shall be progressively reduced by the amounts repaid by the Contractor. The mobilization advance would be deemed as interest bearing advance at an interest rate of 10% to be compounded quarterly.
(ii) Equipment	90% for new and 50% of depreciated value for old equipment. Total amount will be subject to a maximum	After equipment is brought to site (provided the Engineer is satisfied that the equipment is required for performance of the contract) and on submission of unconditional bank guarantee in the form and by a bank acceptable to the Employer in amounts and currencies equal to be at least 110% of the advance payment. The guarantee shall remain

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	of 5% of the contract price.	effective until the advance payment has been repaid, but the amount of the guarantee shall be progressively reduced by the amounts repaid by the Contractor.
(iii) Secured advance for non perishable materials brought to site	75% of invoice value.	a) The material are in accordance with the specification for works; b) Such material have been delivered to site and are properly stored and protected against damage or deterioration to the satisfaction of the engineer. The contractor shall store to bulk material in measurable stacks. c) The contractor‘s records of the requirements, orders, receipt and use of materials are kept in a form approved by the Engineer and such records shall be available for inspection by the Engineer; d)The contractor has submitted with his monthly statement the estimated value of the materials on site together with such documents as may be required by the Engineer for the purpose of valuation of materials and providing evidence of ownership and payment thereof; e) Ownership of such materials shall be deemed to vest in the Employer for which the Contractor has submitted an Indemnity Bond in an acceptable; and f) The quantities of materials are not excessive and shall be used within a reasonable time as determined by the Engineer.

DELETED

(The advance payment will be paid to the Contractor no later than 28 days after fulfillment of the above conditions).

:

33 Repayment of advance payment for mobilization and equipment: [Cl.51.3]

The advance loan shall be repaid with percentage deductions from the interim payments certified by the Engineer under the Contract. Deductions shall commence in the next Interim Payment Certificate following that in which the total of all such payments to the Contractor has reached not less than 20 percent of the Contract Price or 6 (Six) months from the date of payment of first installment of advance, whichever period concludes earlier, and shall be made at the rate of 20 per cent of the amounts of all Interim Payment Certificates until such time as the loan has been repaid, always provided that the loan shall be completely repaid prior to the expiry of the original time for completion pursuant to Clauses 17 and 28

34 Repayment of secured advance: [Cl.51.4]

The advance shall be repaid from each succeeding monthly payments to the extent materials [for which advance was previously paid pursuant to Clause 51.4 of G.C.C.] have been incorporated into the Works.

DELETED

35 The Securities shall be for the following minimum amounts equivalent as a percentage of the Contract Price: [Cl.52]

Performance Security for 5 per cent of contract price plus Rs..... (to be decided after evaluation of the bid) as ~~additional security~~ in terms of ITB Clause 29.5.

The standard form of Performance Security acceptable to the Employer shall be an unconditional Bank Guarantee of the type as presented in Section 8 of the Bidding Documents

Additional Performance security will be applicable as per Ministry's circular number- RW/NH-3304/34/2024-S&R (P&VB) (Computer No.-246283) dated 30.04.2025

36	The Schedule of Operating and Maintenance Manuals :- ----- N/A	[Cl.58]
37	The date by which "as-built" drawings (in scale as directed) in 2 sets are required is within 28 days of issue of certificate of completion of whole or section of the work, as the case may be.	[Cl.58]
38	The amount to be withheld for failing to supply "as built" drawings by the date required is Rs **2.00 (Two)** Lakhs.	[Cl.58]
39	The following events shall also be fundamental breach of contract: "The Contractor has contravened Sub-clause 7.1 and Clause 9 of GCC."	[Cl. 59.2]
40	The percentage to apply to the value of the work not completed representing the Employer's additional cost for completing the Works shall be - 20 per cent.	[3,Cl.60]

Executive Engineer,
National Highways Division,
Deoghar

SECTION-7

PAGE-79 – BILL OF QUANTITIES

(AS PER ATTACHED TABLE)